

HOUSE No. 904

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Blais

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to solar and battery decommissioning and recycling.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>1/17/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/6/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>2/24/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>5/20/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>6/2/2025</i>

HOUSE No. 904

By Representative Blais of Deerfield, a petition (accompanied by bill, House, No. 904) of Natalie M. Blais, Joanne M. Comerford and Mindy Domb relative to solar and battery decommissioning and recycling. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to solar and battery decommissioning and recycling.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 21C of the General Laws is hereby amended by adding the following section:-

2 Section 31. (a) The department shall develop a comprehensive statewide plan for the
3 management of end-of-life solar photovoltaic panels and energy storage system batteries that
4 shall include both partial refurbishing and complete decommissioning.

5 (b) The department shall develop the comprehensive statewide plan in consultation with
6 the department of energy resources and the Massachusetts clean energy technology center
7 established in section 2 of chapter 23J, and in collaboration with a stakeholder group with
8 representatives from the solar industry, local governments, the solid waste industry,
9 environmentalists, recyclers and other interested parties. The plan shall be updated every 10
10 years, or more frequently, as determined by the commissioner.

11 (c) In developing the comprehensive statewide plan the department shall consider all the
12 following:

(i) whether solar photovoltaic panels, energy storage system batteries, their materials or any other equipment used in utility-scale solar projects exhibit any of the characteristics of hazardous waste pursuant to section 2, as well as any other potential environmental hazards posed by solar photovoltaic panels and energy storage system batteries, including fires;

(ii) the preferred methods to responsibly manage end-of-life solar photovoltaic panels, energy storage system batteries, or the constituent materials thereof, or any other equipment used in utility-scale solar projects, including the extent to which such equipment may be: (1) reused, if not damaged or in need of repair, for a similar purpose; (2) refurbished, if not substantially damaged, and reused for a similar purpose; (3) recycled with recovery of materials for similar or other purposes; (4) safely disposed of in construction and demolition or municipal solid waste landfills for material that does not exhibit any of the characteristics of hazardous waste pursuant to section 2; or (5) safely disposed of in accordance with state and federal requirements governing hazardous waste for materials that exhibit any of the characteristics of hazardous waste under state or federal law;

(iii) the volume of solar photovoltaic panels and energy storage system batteries currently in use in the commonwealth and projections, based upon the data on life cycle identified currently on impacts that may be expected to the commonwealth's landfill capacity if landfill disposal is permitted for such equipment at end-of-life;

(iv) whether or not adequate financial assurance requirements are necessary to ensure the safe use and proper decommissioning of solar projects in excess of 1 MW upon cessation of operations;

(v) the infrastructure needed to develop a practical, effective and cost-effective means to collect and transport end-of-life solar photovoltaic panels, energy storage system batteries and other equipment used in utility-scale solar projects for reuse, refurbishment, recycling or disposal;

(vi) an assessment of emerging reuse and recycling technologies and a plan for consideration as they become available;

(vii) the potential development of model agreements between solar photovoltaic panel and energy storage system battery companies and municipalities or private landowners;

(viii) whether or not manufacturer or installer stewardship programs for the recycling of end-of-life solar photovoltaic panels and energy storage system batteries should be established for applications other than utility-scale solar project installations, and if so, fees that should be established for these manufacturers and installers to support the implementation of such requirements;

(ix) a comparative evaluation of the various net environmental impacts of, and best practices for, enabling decommissioned solar or energy storage sites to be restored to undeveloped land or allowing re-use of such lands and suitable solar array or energy storage infrastructure for the establishment of a new solar and storage facility.

(d) Not later than July 1, 2026, the department shall file a report on the status of the comprehensive statewide plan for the management of end-of-life solar photovoltaic panels and energy storage system batteries, including recommendations for regulations and legislation, as well as cost estimates for recommendations, with the clerks of the house and senate; the joint

55 committee on telecommunications, utilities and energy; the joint committee on environment and
56 natural resources; and the joint committee on agriculture.

57 (e) The department shall post the plan established in subsection (a) of this act, and any
58 subsequent revisions, on its public website.

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